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## SECTION 1

### LAW AND LEGISLATION

|        |                                                            |
|--------|------------------------------------------------------------|
| Lesson | 1                                                          |
| Topic  | Understand law<br>Understand force<br>Understand offences  |
| Use    | Reference material for teaching, revision, and note taking |

**Key principle:** Close protection operatives do not have powers beyond those of the average citizen. They must always act within the law and be able to justify their actions.

#### Introduction

This SECTION explains the legal framework relevant to close protection work, including the difference between civil and criminal law, common offences, the use of force, citizen's arrest powers, and practical conflict resolution.

### **Close Protection and the Law**

Close protection officers must not exceed the law. No additional authority is afforded to the close protection industry beyond the powers available to an ordinary citizen.

In day-to-day work, an operative may need to de-escalate a confrontation using communication skills, or in an extreme situation may need to use force to protect a principal for that reason, every operative needs a sound understanding of the implications of their actions and the limits of their powers.

A good knowledge of law and legislation helps an operative carry out the role safely, lawfully, and professionally.

### **Understanding Civil law and Criminal law**

Civil law is non-criminal law. Civil cases involve complaints by individuals or organisations against another individual or organisation in a non-criminal court.

Examples of civil matters include neighbour disputes over property boundaries or a company failing to fulfil its side of an agreement.

Criminal law addresses offences against society. Responsibility for upholding the law rests with the police.

Criminal law changes over time through Acts of Parliament that create statute law.

A close protection officer, while acting in that role, must uphold the law and assist relevant agencies as necessary.

### **Common criminal offences relevant to close protection**

1. Assault and battery: intentionally or recklessly inflicting harm on another person.
2. Battery: intentionally or recklessly applying unnecessary force to another person.
3. Common assault (section 39, Criminal Justice Act 1988): assault without inflicting injury. Examples include spitting, pushing, or poking.
4. Actual bodily harm, or ABH (section 47): assault causing actual bodily harm, such as broken or lost teeth or broken bones.
5. Grievous bodily harm, or GBH (section 20): more serious injury, including wounds that break the skin, visual disfigurement, coma, or broken or displaced bones.

6. Grievous bodily harm with intent: as above, but where the defendant intentionally set out to cause GBH.
7. Theft: dishonest appropriation of another person's property with the intention of permanently depriving them of it.
8. Burglary: entering a building, or part of a building, without consent with the intent to commit theft, criminal damage, rape, or grievous bodily harm.
9. Criminal damage: reckless damage to another person's property.
10. Criminal damage with intent: causing damage with intent to endanger life, including damage to property that may create a threat to life.

### **Human rights and the use of force**

The Human Rights Act 1998 allows individuals to take civil matters to domestic courts.

The main legislative references in the SECTION relating to force are section 3 of the Criminal Law Act 1967 and Article 2 of the Human Rights Act concerning the right to life.

Section 3 of the Criminal Law Act 1967 states that a person may use reasonable force to prevent crime or to assist in an arrest.

The core practical rules are: use force only when absolutely necessary, use only the minimum amount of force necessary, never use weapons, and be prepared to justify your actions.

### **Powers of arrest**

Any person may arrest without warrant anyone who is, or whom they reasonably suspect to be, in the act of committing an arrestable offence.

Where an arrestable offence has been committed, any person may arrest without warrant anyone who is, or whom they reasonably suspect to be, guilty of that offence.

### **Conflict resolution model**

The SECTION summarises the model as aggressive behaviour plus impact factors equals reasonable response.

Force may be permitted in certain circumstances, including sport, medical treatment such as surgery, self-defence, and lawful arrest.

Any act must be reasonable, necessary, and proportionate to the violence offered.

### **Types of conflict include:**

Passive aggression, where no violence is offered and the person may be escorted off site

Active aggression, which may require reasonable force; and serious aggression, where the aim is to inflict injury and the response may require trained skills.

Impact factors likely to cause conflict include sex, age, size, relative strength, mental state, and whether drugs or alcohol are involved.

Effective communication can often resolve or defuse confrontation.

### **Communication skills**

Non-verbal communication uses the **P A L M S** framework:

P - Position: allows exit routes for you and the other person.

A - Attitude: maintain a positive but assertive attitude.

L - Look and listen: maintain normal eye contact and actively listen.

M - Make space: maintain a comfortable distance.

S - Stance: keep shoulders relaxed and stand side on.

Verbal skills include understanding the aggression being shown, moderating your voice, not displaying anger, maintaining a positive attitude, listening carefully, being assertive rather than aggressive, and showing empathy even when you do not agree.

### **SUMMARY**

This section establishes the legal framework governing close protection operations, including the distinction between civil and criminal law, relevant offences, and the lawful use of force. It reinforces the principle that Close Protection Operatives possess no additional legal powers beyond those of an ordinary citizen and must act within the boundaries of legislation at all times. The section also highlights the importance of conflict resolution, communication, and proportionality when responding to incidents, ensuring that all actions are justified, necessary, and legally compliant.

### **Quick reference**

| Area      | Operational takeaway                                            |
|-----------|-----------------------------------------------------------------|
| Authority | No additional legal powers beyond those of an ordinary citizen. |
| Force     | Must be reasonable, necessary, and proportionate.               |

|               |                                                                                                                         |
|---------------|-------------------------------------------------------------------------------------------------------------------------|
| Arrest        | A person may arrest in limited circumstances where an arrestable offence is being committed or is reasonably suspected. |
| Communication | De-escalation should be used wherever possible before force is considered.                                              |

### Enhanced Knowledge

- In practice, “reasonable force” should be assessed through necessity, proportionality, immediacy and honest belief at the time of the incident.
- Record decision-making after any use of force: threat observed, options considered, action taken, outcome and witnesses.
- A CPO should remember that legal authority is limited; professionalism depends on restraint, communication and clear justification.

### Key Learning Points – You should be able to answer the following Additional key learning points:

- Explain the difference between civil liability and criminal offences in CP work.
- Describe when force may be used and why it must be necessary, reasonable and proportionate.
- Recognise common offences likely to arise during protection duties.
- Explain why accurate notes and post-incident reporting protect the principal, the public and the operative.

Explain the difference between civil law and criminal law.

Identify offences a Close Protection Operative may encounter in the course of duty.

Summarise the legal principles governing the use of force.

Outline the circumstances in which a person may make an arrest.

Apply the conflict resolution model to practical Close Protection situations.

### Thought !

**A lawful protector understands that restraint is strength, the safest action is the one that protects life while remaining justifiable afterwards.**

### Notes:

## SECTION 2

### ROLE OF A CLOSE PROTECTION OFFICER

|        |                                                                                                                                                                         |
|--------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Lesson | 2                                                                                                                                                                       |
| Topic  | Understand the role of a Close Protection Officer<br><br>Identify key responsibilities and operational factors<br><br>Understand daily routines and security procedures |
| Use    | Reference material for teaching, revision, and note taking                                                                                                              |

### INTRODUCTION

Many individuals entering the Close Protection industry have a vague or romanticized view of the role. In reality, the duties of a Close Protection Officer (CPO) are varied and depend on multiple operational factors including risk level, environment, and client requirements.

### ROLE OF A CLOSE PROTECTION OFFICER

A Close Protection Officer is responsible for identifying, assessing and mitigating risks to a principal. The role focuses on preventing threats such as assault, kidnapping, stalking, loss of confidential information and terrorist activity.

Protection may be provided to celebrities, public figures and high net worth individuals. Depending on the level of risk, protection may be delivered by a team or a single operative.

### KEY RESPONSIBILITIES

The responsibilities of a CPO vary depending on several factors:

#### 1. LEVEL OF RISK

High risk environments may require counter-surveillance, route risk analysis, and monitoring for threats such as IEDs or ambush points. Low risk environments require discretion and a low profile approach.

## **2. TYPE OF CLIENT**

Celebrity protection often involves crowd management and privacy control.

High-risk individuals require a more overt security presence focused on deterrence and physical protection.

## **3. ROLE ASSIGNED**

A CPO may operate in various roles including driver-bodyguard, advance operative, surveillance support or technical support.

## **4. DRIVER ROLE**

Driver responsibilities include vehicle checks, defensive driving, maintaining vehicle security and operating specialised or armoured vehicles where required.

### **DAILY ROUTINE**

Operations begin with a team briefing where the principal's schedule is reviewed, risks are assessed and tasks are allocated. Planning includes routes, venue checks and movement coordination.

### **VEHICLE SECURITY**

Vehicles must be inspected before use, secured when unattended and positioned for rapid deployment.

### **TRANSFERRING THE PRINCIPAL**

Vehicles are positioned near exits, with security maintained at all times during movement. At least one team member remains with vehicles to prevent tampering.

### **MOVEMENT**

Pre-planned routes are used and choke points such as tunnels or congestion areas are avoided. Public transport is generally avoided due to reduced control.

### **SUMMARY**

This section provides a detailed overview of the subject, reinforcing key operational principles and ensuring effective application within real-world close protection environments.

### **Enhanced Knowledge**

- Modern CPO work is intelligence-led: protective activity begins before contact with the principal through risk assessment, itinerary review and environment scanning.
- The role includes protecting reputation, privacy and information as well as physical safety.
- A professional CPO balances visibility and discretion according to threat, environment and the principal's lifestyle.



**Key Learning Points – You should be able to answer the following Additional key learning points:**

- Define the primary purpose of a Close Protection Officer.
- Identify how risk level, client type and assigned role affect duties.
- Explain why daily briefings, vehicle checks and route planning are essential.
- Recognise that prevention and preparation are more effective than reaction.

Know what the key responsibilities are for a CPO

Explain daily routine and why it is important from a security procedure perspective **Thought**

**!**

**The best close protection is often invisible: danger is reduced before the principal ever notices it.**

**Notes:**